

24STCV25988 24STCV25988

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Case Number: 24STCV25988 Hearing Date: July 10, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV25988

LADWAN

THOMPSON vs MENS HEALTH FOUNDATION, A CALIFORNIA CORPORATION, et al.

July

10, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT MEN'S HEALTH FOUNDATION, INC.'S MOTION TO COMPEL FURTHER RESPONSES
FROM PLAINTIFF LADWAN THOMPSON; REQUEST FOR MONETARY SANCTIONS.

RULING:

The Court grants the
Motion.

On or before September 4,
2026, Plaintiff shall serve further responses and produce documents, without
objections, and in full compliance with the California Discovery Act (Code Civ.
Proc. § 2016.010 et seq.), as to Defendant's Special Interrogatories and Requests
for Production of Documents.

On or before that same
date, Plaintiff, and LIPELES LAW GROUP, APC, jointly and severally, shall pay
discovery sanctions in the sum of \$7,436.00, to Defendant MEN'S HEALTH
FOUNDATION, INC., the Court finding the absence of substantial justification.
(E.g., Code Civ. Proc., § 2023.030.)

Defendant to give notice.

I.

BACKGROUND

On October 7, 2024, LADWAN
THOMPSON (Plaintiff) filed a Complaint against MEN'S HEALTH FOUNDATION and
CHEVONNE DOE (Defendants), listing Causes of Action for:

1.
WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;

2.
DISABILITY DISCRIMINATION;

3.
RACE DISCRIMINATION;

4.
FAILURE TO PREVENT DISCRIMINATION;

5.
HARASSMENT DUE TO RACE;

6.

HARASSMENT DUE TO DISABILITY;

7.

HOSTILE WORK ENVIRONMENT IN VIOLATION OF GOVT. CODE §12940;

8.

FAILURE TO ACCOMMODATE PHYSICAL DISABILITY IN VIOLATION OF GOV. CODE §12940(m);

9.

FAILURE TO ENGAGE IN A GOOD FAITH INTERACTIVE PROCESS IN VIOLATION OF GOV. CODE §12940(n);

10.

NEGLIGENT HIRING, SUPERVISION AND RETENTION;

11.

REFUSAL TO PROVIDE INFORMATION IN VIOLATION OF LABOR CODE §§226(f) and 1198.5;

12.

INJUNCTION TO COMPEL PRODUCTION OF EMPLOYMENT RECORDS; and

13.

UNFAIR COMPETITION.

Plaintiff alleges that,

until being wrongfully terminated as a medical assistant, Plaintiff experienced harassment, and disability and racial discrimination, by Supervisor CHEVONNE DOE.

On May 20, 2026, MEN'S

HEALTH FOUNDATION, INC. (Defendant) filed the Motion to Compel further responses to form and special interrogatories and document requests, which includes a request for \$7,436.00 in sanctions against Plaintiff and/or counsel.

Plaintiff opposes, based upon

counterarguments that satisfactory responses were served on May 20, 2026, delay was caused by waiting for the client to provide discovery verifications, counsel has a Motion to be Relieved pending, and sanctions would be unjust given substantial justification.

On July 6, 2026, the Court continued to July 10, 2026 the Motion to be Relieved as Counsel, for form completion as to confirming the client's address.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to interrogatories...."]; and 2031.310, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to an inspection demand...."].) A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1190.) "While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase "substantial justification" has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.'" (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) "If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based

on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 (Sinaiko); County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].)

The failure of clients to serve responses, due to their failure to keep counsel informed of their whereabouts, may be found to be a willful failure to comply with discovery requirements. (Steven M. Garber & Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 821; Cornwall v. Santa Monica Dairy (1977) 66 Cal.App.3d 250, 253.)

III.

ANALYSIS

Defendant summarizes the substantive issues as follows:

First,

Plaintiff’s Request for Production (“RFP”) responses state she will produce documents “in her possession,” omitting the statutorily required confirmation that production will include not only documents in her possession, but also documents that are in her custody or control.

Second,

across both her RFP and interrogatory responses, Plaintiff is systematically evasive — she states she will comply, then produces or identifies documents that have nothing to do with the request asked, or she provides legal conclusions and vague references in place of the factual answers the Civil Discovery Act requires.

Third,

despite asserting boilerplate privilege and work product objections in response to every single discovery request she received, Plaintiff has never produced a

privilege log, leaving MHF unable to evaluate whether a single responsive document is being legitimately withheld.

(Motion, 1:9-19.)

Essentially, Plaintiff responds that the Motion is moot after served responses, and substantial justification for delay exists based on waiting for client verifications.

The Reply reasons that the verifications are dated such that counsel was not waiting for them as stated. Also, Reply specifies in detail, like a Separate Statement, why supplements are not in full compliance.

Where respondents served untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko, supra, 148 Cal.App.4th at p. 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

Here, the opposing Declaration of attorney Justen A. Lipeles, filed June 26, 2026, evidences that Plaintiff served further responses after delay caused by waiting for the client's discovery verifications.

However, the Reply disputes the opposing arguments of mootness and justified delay, to which Plaintiff and counsel have not served any surreply. The Court observes that arguments could be made to the effect that some contested discovery responses are code-complaint; however, a judge in a civil case is not “obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken.” (Mesecher v. County of San Diego (1992) 9 Cal.App.4th 1677, 1686.)

IV.

CONCLUSION

Therefore, the Court grants the Motion as to the requests to compel and sanctions.